

SENATE BILL 2301

By Oliver

AN ACT to amend Tennessee Code Annotated, Title 10,
Chapter 7; Title 33 and Title 49, relative to mental
health resource awareness.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "School Mental Health
Transparency Act."

SECTION 2. Tennessee Code Annotated, Title 49, Chapter 6, Part 3, is amended by
adding the following as a new section:

(a) Utilizing existing staff, programs, and resources, the department of education
shall compile, maintain, and publish on its website a list of mental health resources that
are available to students in this state, delineated, if applicable to a specific mental health
resource, by:

(1) The geographic location where the mental health resource is
provided; and

(2) Any limitation on the availability of the mental health resources that is
based on residence.

(b) In compiling and maintaining the list required by subsection (a), the
department shall consult with the following:

- (1) The department of children's services;
- (2) The department of health;
- (3) The department of mental health and substance abuse services;
- (4) The department of human services;
- (5) The bureau of TennCare;

(6) The Tennessee governor's children's cabinet; and

(7) Any additional agency, organization, or person having information relevant to the list, as determined by the department of education.

(c) Each public school shall review the list of mental health resources that is maintained pursuant to subsection (a) and compile and maintain a list of mental health resources that are available to students who are enrolled in the school.

(d) Each public school shall:

(1) Beginning with the 2026-2027 school year, provide, at least once each school year, the list required by subsection (c) to the parent or guardian of every student enrolled in the school, or to the student in the case of a student who is eighteen (18) years of age or older. A public school may satisfy the requirements of this subdivision (d)(1) by distributing the list required by subsection (c) to parents, guardians, and students by electronic means or existing school communication platforms; and

(2) Publish the list required by subsection (c) on the school's website.

(e) The inclusion of a mental health resource on a list that is compiled, maintained, or distributed pursuant to this section is not an endorsement of that mental health resource by the state, the department of education, or a public school.

(f) This section does not mandate new staffing, programs, or expenditures.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.